

****CYPRUS REPUBLIC****

****OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION****

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****COMMISSIONER****

File No.: 11.17.001.011.249

****DECISION****

Complaint regarding the processing of personal data registered in the account of a beneficiary of the General Health System (GeSY)

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I examined a complaint submitted to my Office on November 28, 2023, by Mr. XXX (hereinafter referred to as the "complainant"), regarding the processing of personal data that were registered in the complainant's beneficiary account on the platform of the General Health System (GeSY), by Dr. XXX (hereinafter referred to as the "respondent").

Based on the investigation, I found a violation of the Regulation by the respondent and, therefore, I issue this Decision.

****A. Case Facts****

****Positions of the Complainant****

2. In the complaint dated November 28, 2023, the following were mentioned:

2.1. In October 2023, the complainant made an appointment by phone with the respondent, who works at the Aretaeio Medical Center Limited (hereinafter referred to as the "Medical Center"), for November 28, 2023,

2.2. On November 27, 2023, the respondent's secretary called the complainant from the number XXX, three times, around 10:30 a.m. The complainant did not answer the calls because he was speaking at a lecture. Due to the persistence of the calls, the complainant interrupted his speech and informed the caller that he would call her back as soon as he finished, which he did "without picking up the phone,"

2.3. On the same day, around 4:00 p.m., they called the complainant again, and he refused the calls because he was in a lecture at the University,

2.4. The complainant received a message on his mobile phone from his father, who informed him that he was being sought by the Medical Center for a medical appointment, asking what health issue he had and why he was hiding it from them,

2.5. Around 4:30 p.m., the complainant called the doctor's secretary. During the phone call, it was mentioned to the complainant that because the secretary wanted to leave, she searched the complainant's personal data and called his father and mother. The complainant stated that during the call, the secretary persistently disturbed them to confirm his appointment.

3. It is noted that the complaint had been sent to the Commissioner for Supervision of GeSY and had been communicated to my Office. However, in a phone communication that a staff member of my Office had with the Office of the Commissioner for Supervision of GeSY, the staff member of my Office stated that he would duly investigate the said complaint.

****Positions of the Medical Center****

4. In the context of investigating the complaint, my Office sent a letter with clarifying questions to the Medical Center on December 22, 2023.

5. The Medical Center, in a letter dated January 9, 2024, informed my Office regarding the following:

5.1. The Medical Center conducts nursing operations and provides nursing services to the patients of the doctors who collaborate with it and/or maintain practices within it. Each doctor who maintains a practice at the Medical Center acts as self-employed or as an employee of his medical company. In the context of exercising their profession, the doctors employ their secretaries as employers,

5.2. As a result of the above, the responsible party for processing the complainant's data is the respondent, and not the Medical Center. The Medical Center would be a "joint controller" of the processing if the complainant were hospitalized there, which did not occur.

****Positions of the Respondent****

6. Therefore, my Office sent a letter with clarifying questions to the respondent on February 7, 2024.

7. The respondent, in a letter dated February 9, 2024, stated to my Office, among other things, the following:

7.1. The complainant made an appointment for November 28, 2023, through the respondent's secretary, within the framework of GeSY. Due to the reduced availability of appointments and increased demand, the respondent's secretary is instructed to contact patients one or two days before their appointment as a reminder and confirmation of the appointment, since appointment bookings are usually made weeks in advance. It is also checked that patients have the necessary referral to the specific specialty for the provision of services within the framework of GeSY, as the absence of a referral requires a higher contribution from the patient during the visit to a doctor. It was also mentioned that a list of patients needing urgent examination is maintained, but their appointment is not in the near term, so that any last-minute canceled appointments can be replaced, and therefore...

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Additional patients were assisted. As has been established, in several cases, during the telephone communication, patients cancel their appointments for various reasons,

7.2. The Respondent has never met or spoken with the complainant; therefore, all information submitted by the Respondent, as he stated, regarding the incident was obtained through a written statement from his secretary. The Respondent's secretary is employed by him and a group of doctors as a personal assistant and also performs secretarial duties. The secretary carries out her duties at the Medical Center and has been trained by the Medical Center in Personal Data Management based on ISO principles. According to the secretary's statement, on November 27, 2023, in the morning, several attempts were made to communicate with the complainant, which were unsuccessful. When the complainant answered the phone, he was asked if he would attend his appointment the following day, and he replied that he was in a lecture and would confirm the appointment as soon as he finished his lecture. However, there was no communication from the complainant until the end of the working day, nor was there an unanswered call at the call center until 16:00. This resulted in a new call being made to him, which was also unsuccessful. For this reason, based on the information that the complainant provided on the GeSY platform, communication was made with his nearest relative, specifically his father, who pleasantly responded that he would inform the complainant about his appointment. The complainant contacted the office around 16:45 and canceled his appointment,

7.3. The Respondent does not retain any personal data of the complainant, other than those provided by him for the appointment booking, such as name, phone number, identity number, and date of birth. This information was requested when the complainant requested an appointment under GeSY, and this information was required to confirm that the complainant is entitled to care through GeSY. Through the GeSY platform, the complainant's data available to the Respondent's secretary are those recorded

by the complainant and are available for the support staff, without access to clinical data. The doctors' secretaries, through the GeSY platform for support staff, have access to patients' demographic information, specifically identification details such as full name, date of birth, identity number, marital status, GeSY beneficiary code, residential address, landline and mobile phone, communication preferences, name of nearest relative, and phone number of nearest relative,

7.4. Since the complainant provided alternative contact details through his nearest relative on the GeSY platform, and since communication could not be established, the Respondent's secretary, on her initiative, used this contact detail to inform the complainant and ultimately confirm the date and time of his appointment. No clinical information regarding the reason for the appointment was shared with the complainant's father. Additionally, there was no communication with the complainant's mother. Furthermore, communication with the nearest relative as a means of confirming appointments is by no means the usual practice of the Respondent.

8. In the Respondent's response to my Office, a report of events from the Respondent's secretary was included, which stated the following:

8.1. On November 27, 2023, the complainant was called by phone at various times, and after considerable effort, in the morning, he answered and stated that

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will confirm whether he will attend his appointment or not, as soon as he completes his lecture. However, the office hours of the clinic that day were from 09:00 a.m. to 17:00, and the complainant had not informed them by 16:00. Additionally, there was no record in the telephone system of an unanswered call from the complainant.

8.2. Furthermore, a new telephone attempt was made, which again went unanswered by the complainant. With no other option available, contact was made with the nearest relative, whom he himself had registered with the General Health System (GeSY), specifically with his father. The father of the complainant immediately answered the call and, as mentioned, very pleasantly stated that he would inform the complainant about the appointment via message.

8.3. After receiving the message from his father, the complainant contacted the clinic, around 16:45.

Positions of the Complainant

9. On July 18, 2024, my Office sent the complainant the claims of the Respondent and his secretary, so that he could submit his positions. Due to his failure to respond by the specified date, my Office requested the complainant's positions again, on July 30, 2024.

10. The following day, namely on July 31, 2024, the complainant informed my Office, among other things, of the following:

10.1. The matters mentioned in the Respondent's response letters were communicated to the complainant by his secretary over the phone. Therefore, if the complainant wished to have communication, either written or oral, with the Respondent, he could do so on his own.

10.2. The complainant submitted the complaint to my Office to ascertain whether there was a violation of his personal data, and not to have my Office communicate with the Respondent, seven months after the submission of the complaint.

10.3. Given the above, the complainant did not intend to comment or respond to the positions of the Respondent or his secretary.

10.4. The complainant posed the following questions to my Office:

10.4.1. Whether the provision for the use of a telephone number belonging to "alternative contact details" is subject to restrictions or conditions and whether his case falls under any of those conditions or restrictions.

10.4.2. Since he had already responded to a call from the secretary and had called the same day, as she confirmed, did the complainant fall under the cases for using "alternative contact details"?

11. My Office, in a letter dated August 14, 2024, informed the complainant of the following:

11.1. In the context of the administrative process for examining complaints submitted, the Commissioner for the Protection of Personal Data, as an Administrative Body, performs her duties by issuing enforceable administrative acts through a written process.

11.2. In the context of this process, the complainant was granted the right to comment and/or contest, in writing to my Office and not to the Respondent himself, the claims of the Respondent and his secretary.

11.3. In no case did my Office attempt or request the complainant to communicate (orally or in writing) with the Respondent.

11.4. The investigation I am conducting is not intended for the complainant to communicate with the Respondent, but is conducted to ascertain whether there has been a violation of the complainant's personal data, as he himself stated to my Office.

11.5. In any case, I informed the complainant that the questions he posed in his letter, as presented in paragraph 10.4 above, would be answered in my Decision.

B. Legal Aspect

12. According to Article 4 of the Regulation, personal data is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

13. Data concerning health, as provided in the same article of the Regulation, is described as "personal data related to the physical or mental health of a natural person, including the provision of health care services, and which reveal information about the health status of that person."

14. As the data controller, Article 4 of the Regulation defines "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

15. Regarding the principles governing processing, it is provided that personal data:

"a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'),

b) shall be collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes."

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themselves; further processing for archiving purposes in the public interest or for scientific or historical research purposes or for statistical purposes is not considered incompatible with the initial purposes according to Article 89 paragraph 1 ("purpose limitation"),

g)

is adequate, relevant, and limited to what is necessary for the purposes for which it is processed ("data minimization"),

d)

is accurate and, when necessary, kept up to date; all reasonable measures must be taken to ensure the immediate deletion or correction of personal data that is inaccurate, in relation to the purposes of the processing ("accuracy"),

e)

is kept in a form which permits identification of data subjects only for as long as is necessary for the purposes of processing personal data; personal data may be stored for longer periods, provided that the personal data will be processed only for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89 paragraph 1 and

provided that appropriate technical and organizational measures required by this regulation are applied to ensure the rights and freedoms of the data subject ("storage limitation"),

f) is processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ("integrity and confidentiality").

16.

Regarding the processing of special categories of personal data, Article 9 of the Regulation provides the following:

"1.

The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2.

Paragraph 1 does not apply in the following cases:

a)

the data subject has given explicit consent to the processing of those personal data for one or more specific purposes, unless Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject,

b)

the processing is necessary for the performance of obligations and the exercise of specific rights of the data controller or the data subject in the field of employment law and social security and social protection law, provided that it is permitted by Union or Member State law or by a collective agreement under national law providing appropriate safeguards for the fundamental rights and interests of the data subject,

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g) the processing is necessary for the protection of the vital interests of the data subject or another natural person, if the data subject is physically or legally incapable of giving consent,

d) the processing is carried out, with appropriate safeguards, in the context of the legitimate activities of a foundation, organization, or other non-profit entity with a political, philosophical, religious, or trade union aim and provided that the processing concerns only the members or former members of the entity or persons who have regular contact with it in relation to its purposes and that the personal data is not disclosed outside the specific entity without the consent of the data subjects,

e) the processing concerns personal data which has been manifestly made public by the data subject,

f) the processing is necessary for the establishment, exercise, or defense of legal claims or when courts are acting in their judicial capacity,

g) the processing is necessary for reasons of substantial public interest, based on Union law or the law of a Member State, which is proportionate to the pursued objective, respects the essence of the right to data protection, and provides for appropriate and specific measures to safeguard the fundamental rights and interests of the data subject,

h) the processing is necessary for purposes of preventive or occupational medicine, assessment of the employee's working capacity, medical diagnosis, provision of health or social care or treatment, or management of health and social care systems and services based on Union law or the law of a Member State or pursuant to a contract with a health professional and subject to the conditions and safeguards referred to in paragraph 3,

i) the processing is necessary for reasons of public interest in the area of public health, such as the protection against serious cross-border threats to health or ensuring high standards of quality and safety of health care and of medicinal products or medical devices, based on Union law or the law of a Member State, which provides for appropriate and specific measures to protect the rights and freedoms of the data subject, in particular the professional secrecy, or

j) the processing is necessary for archiving purposes in the public interest, for scientific or historical

research purposes, or for statistical purposes in accordance with Article 89(1) based on Union law or the law of a Member State, which are proportionate to the pursued objective, respect the essence of the right to data protection, and provide for appropriate and specific measures to safeguard the fundamental rights and interests of the data subject.

3. Personal data referred to in paragraph 1 may be processed for the purposes provided for in paragraph 2 point h), when such data is processed by or under the responsibility of a professional who is subject to the obligation of professional secrecy under Union law or the law of a Member State or under rules established by competent national bodies or by another person who is also subject to the obligation of confidentiality under the law of the Union.

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Union or Member State or based on rules established by competent national authorities.

4.

Member States may maintain or establish further conditions, including restrictions, regarding the processing of genetic data, biometric data, or health-related data.

17.

Pursuant to Article 57, paragraph 1, point (f) of the Regulation, the Commissioner for Personal Data Protection has the duty to:

"handle complaints submitted by the data subject or by an entity or organization or association in accordance with Article 80 and investigate, to the extent appropriate, the subject matter of the complaint and inform the complainant about the progress and outcome of the investigation within a reasonable time frame, particularly if further investigation or coordination with another supervisory authority is required."

18.

Regarding the submission of a complaint to the Supervisory Authority, Article 77 of the Regulation provides that:

"Subject to any other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State of their habitual residence or place of work or the place of the alleged infringement, if the data subject considers that the processing of personal data concerning them infringes this Regulation."

19.

Pursuant to Article 58, paragraph 2, of the Regulation, the Commissioner for Personal Data Protection has the following corrective powers:

"a)

to issue warnings to the controller or processor that intended processing operations are likely to infringe provisions of this Regulation,

b)

to issue reprimands to the controller or processor when processing operations have infringed provisions of this Regulation,

c)

to order the controller or processor to comply with the requests of the data subject to exercise their rights under this Regulation,

d)

to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, if necessary, in a specific manner and within a specified time limit,

e)

to order the controller to notify the personal data breach to the data subject,

f)

to impose a temporary or definitive limitation, including a ban on processing,

g)

to order the rectification or erasure of personal data or restriction of processing pursuant to Articles 16, 17, and 18 and to order notification of such actions to recipients to whom the personal data have been disclosed pursuant to Article 17, paragraph 2, and Article 19,

h)

to withdraw a certification or to order the certification body to withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue a certification, if the certification requirements are not met or are no longer met,

i)

to impose an administrative fine pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,

j)

to order the suspension of the transfer of data to a recipient in a third country or to an international organization."

20.

Regarding the general conditions for imposing administrative fines, Article 83, paragraph 2, of the Regulation provides the following:

"2.

Administrative fines, depending on the circumstances of each individual case, may be imposed in addition to or instead of the measures referred to in Article 58, paragraph 2, points (a) to (h) and in Article 58, paragraph 2, point (i). In deciding whether to impose an administrative fine, as well as the amount of the administrative fine for each individual case, the following shall be duly taken into account:

a)

the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the level of damage suffered,

b)

the intent or negligence of the controller or processor in causing the infringement,

c)

any actions taken by the controller or processor to mitigate the damage suffered by data subjects,

d)

the degree of responsibility of the controller or processor, taking into account the technical and organizational measures they have implemented pursuant to Articles 25 and 32,

e)

any relevant previous infringements by the controller or processor,

f)

the degree of cooperation with the supervisory authority to remedy the infringement and mitigate its possible adverse effects,

g)

the categories of personal data affected by the infringement,

h)

the manner in which the supervisory authority became aware of the infringement, in particular whether and to what extent the controller or processor notified the infringement,

i)

where previous measures referred to in Article 58, paragraph 2, were ordered against the involved controller or processor regarding the same subject matter, compliance with those measures,

j)

the adherence to approved codes of conduct in accordance with Article 40 or approved certification mechanisms in accordance with Article 42, and

k)

any other aggravating or mitigating factor arising from the circumstances of the particular case, such

as the financial benefits gained or losses avoided, directly or indirectly, from the infringement."

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3. In the event that the data controller or the processor, for the same or related processing activities, violates several provisions of this regulation, the total amount of the administrative fine shall not exceed the amount set for the most serious infringement.

4. Violations of the following provisions shall incur, in accordance with paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of enterprises, up to 2% of the total worldwide annual turnover of the previous financial year, whichever is higher:

a) the obligations of the data controller and the processor according to Articles 8, 11, 25 to 39, and 42 and 43,

b) the obligations of the certification body according to Articles 42 and 43,

c) the obligations of the monitoring body according to Article 41 paragraph 4.

5. Violations of the following provisions shall incur, in accordance with paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of enterprises, up to 4% of the total worldwide annual turnover of the previous financial year, whichever is higher:

a) the basic principles for processing, including the conditions applicable to consent, according to Articles 5, 6, 7, and 9,

b) the rights of data subjects according to Articles 12 to 22,

c) the transfer of personal data to a recipient in a third country or to an international organization according to Articles 44 to 49,

d) any obligations under the law of the Member State established pursuant to Chapter IX,

e) non-compliance with an order or with a temporary or definitive restriction on processing or with a suspension of data flows imposed by the supervisory authority under Article 58 paragraph 2 or failure to provide access in violation of Article 58 paragraph 1.

G. Reasoning

21. In the incident in question, the role of the data controller is held by the Subject, as he has determined the purpose of the processing activity under investigation, namely the communication with the father of the complainant, for the purposes of reminding and confirming the appointment.

Moreover, as the Subject himself stated, his secretary is instructed to communicate with patients one or two days before their appointment.

22. Furthermore, due to this communication, the purpose of verifying the existence of a referral is also served, as well as the examination of a patient who is included in the list of patients, in case another patient cancels their appointment.

23. The Medical Center does not constitute the data controller, as the secretary is employed by the Subject (and by other doctors) and, therefore, takes instructions from the Subject (and the other doctors accordingly). The fact that his secretary

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The person in question, while employed at the facilities of the Medical Center, does not assign the Medical Center a role as a data processor concerning the specific processing, namely the communication with the father of the complainant. Nor is responsibility attributed to the Medical Center, because, as stated by the person in question, the secretary has been trained by it in Personal Data Management, based on ISO principles.

24.

The fact that the secretary of the person in question is employed by him means that she is under his supervision and, therefore, should only process data at his instruction, as the data controller. The person in question, as the data controller, determines the purposes and means of processing. Despite the fact that, as stated by the person in question, his secretary acted in this processing initiative, I find that he is not exempt from his responsibility. Moreover, it has not been presented to my Office that

explicit instructions were given to the secretary not to use the details of the nearest relative for the purpose of confirming appointments. In any case, the person in question, as the data controller, is obliged to give instructions to his secretary regarding the means of processing and the security measures for personal data, but at the same time, he must also monitor the proper adherence to and implementation of these measures.

25.

The successful communication with the father of the complainant resulted in the disclosure to him of personal data of the complainant, specifically the existence of a scheduled medical appointment with the person in question. The disclosure of this information constitutes processing of data concerning the health of the complainant, that is, data of special categories, and therefore, the provisions of Article 9 of the Regulation must be adhered to.

26.

As stated by the person in question, no clinical information regarding the reason for the appointment was disclosed to the father of the complainant. I have no reason to dispute this claim. Moreover, based on the positions of the complainant, no evidence has been presented that would support the assertion that more data was disclosed to the father of the complainant. Furthermore, the father of the complainant, in his message to the complainant, asked what health issue the complainant had, which apparently indicates that he had not been informed about it by the secretary of the person in question.

27.

The complainant provided personal data to the person in question, through his secretary, for the purpose of a medical examination. Specifically, the complainant provided his name, phone number, identification number, and date of birth. Whether this data is excessive and, therefore, not required to be collected in its entirety for the purpose of scheduling a medical appointment is not an issue addressed by this Decision. Nevertheless, I acknowledge the fact that this data has been collected by the person in question for the purpose of serving a specific, explicit, and legitimate aim.

28.

Regardless of the provision of data to the person in question, the complainant had previously registered his personal data in his account on the GeSY platform, as required. The fact that the data collected by the person in question (through his secretary) could grant access to the complainant's account, even if the secretary of the person in question could not access his medical data, does not automatically mean that any of the data in the complainant's account can be used for a purpose other than that for which it was collected.

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29. After studying the information available on the website of the Health Insurance Organization, it appears that a beneficiary of the General Health System (GeSY), in addition to a mobile phone number that they are required to register in order to access their account, may (but is not obliged to) add a home phone number, a work phone number, as well as a mobile phone number. The registration of this information is not mandatory, as these fields are not accompanied by an asterisk (*).

30. However, the name of the nearest relative and their phone number are mandatory information when registering a beneficiary in the GeSY system, as indicated by the relevant symbol. Moreover, the fact that it is stated on the GeSY platform "It is recommended to use a different phone number for the nearest relative than those you provided in your contact details" indicates that this data is intended for a different purpose.

31. Based on the above, I conclude that "alternative contact details" consist only of the phone numbers mentioned in paragraph 29 of this document, which are registered in the corresponding fields of the "Contact Details" section, namely the home phone number, work phone number, and mobile phone number. Therefore, I do not accept the position of the Respondent that the phone number of the nearest relative constitutes an alternative contact detail. The aforementioned number exists to serve a specific purpose, namely to inform the nearest relative of the GeSY beneficiary only when required. I understand that these cases are exceptional or even rare, and are considered on a case-by-case

basis. For example, under certain conditions, the nearest relative could be informed if the GeSY beneficiary is unconscious and is receiving emergency treatment or in the case of a serious accident. Obviously, in these cases, communication for the confirmation and/or reminder of a medical appointment is not included.

32. The above conclusion is also drawn from the fact that the information mentioned in paragraph 29 is not mandatory, while the full name and phone number of the nearest relative are mandatory details.

33. Therefore, the fact that the father of the complainant is registered as the nearest relative does not mean that he is entitled to know the scheduled medical appointments of the complainant.

34. Moreover, I believe that a beneficiary of GeSY does not expect that the contact details of the nearest relative will be used as alternative contact details for the beneficiary, just as the complainant did not expect such a thing.

35. Based on the above, I find that the details of the nearest relative of the complainant, which were registered by him on the GeSY platform, were processed in a manner incompatible with the purpose for which they were collected, in violation of Article 5(1)(b) of the Regulation.

36. Regarding the questions raised by the complainant to my Office in his letter dated July 31, 2024, I note that obviously the use of a phone number, which serves as an alternative contact detail, is placed...

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under conditions and restrictions. The use of an alternative means of communication is intended to facilitate communication with the data subject itself, and not with another person. Therefore, when using an alternative means of communication, communication must be made with the data subject itself.

36.1. For example, in the case of using the work telephone number of the data subject (a number that the subject provided), there should be no disclosure of the subject's data to another person (for example, to a colleague of the subject) if the subject is absent from work.

36.2. However, I acknowledge that there are cases where the data subject designates as an alternative means of communication, the telephone number of another person, for example, that of a spouse or child in the case of an elderly individual. Nevertheless, there should still be an effort to communicate with the data subject itself. It does not automatically mean that all of the subject's data should be disclosed to the person to whom the telephone number belongs, in violation of the principle of data minimization, namely Article 5(1)(c) of the Regulation. However, these cases should be examined on a case-by-case basis.

36.3. However, the case of the complainant has no relation to what is stated in this paragraph, since, as analyzed above, the telephone number of the complainant's father, in this case, is neither an alternative means of communication nor was it designated as such.

36.4. It follows, therefore, that the complainant does not fall under the cases of using "alternative contact details," not because he had already answered a call from the secretary of the respondent and later that same day called the secretary himself, but because the complainant did not designate his father's number as an alternative means of communication.

37. Regarding whether the complainant communicated with the clinic when he completed his lecture, a fact that is disputed by the respondent and his secretary, since, as mentioned, there was no unanswered call from the complainant found in the call center, I state that these conflicting positions do not in any way affect my finding regarding the violation committed by the respondent.

D. Conclusion

38. Taking into account all the above elements, as they have been presented, and based on the powers conferred upon me by Article 57(1)(f) of the Regulation, I find that there has been a violation by the respondent of Article 5(1)(b) of the Regulation (EU) 2016/679, because personal data was

processed in a manner incompatible with the purpose for which it was collected.

39. Based on the provisions of Article 83 of the Regulation, regarding the conditions for imposing administrative fines, to the extent that they apply in this specific case, in determining the administrative fine, I took into account the following aggravating (a) and mitigating (b) – (f) factors:

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- (a) the processing operation concerns the disclosure of data related to health,
- (b) the incident involved one data subject,
- (c) no further medical data disclosure was found, beyond the information regarding the existence of a scheduled medical appointment,
- (d) the cooperation of the respondent with my Office in the context of the investigation of the complaint,
- (e) the absence of a similar nature complaint against the respondent in my Office, from another data subject,
- (f) the absence of a previous Decision against the respondent.

40. After considering and weighing:

- (a) the applicable legislative framework regarding the prescribed administrative sanctions in the provisions of Article 58(2) and Article 83 of the Regulation,
- (b) all circumstances and factors presented to me by the complainant and the respondent based on all existing correspondence,
- (c) the above aggravating and mitigating factors,

I find that, under the circumstances, the imposition of an administrative fine is not justified.

41. Nevertheless, taking into account the aforementioned facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers granted to me by Article 58(2)(b) of the Regulation,

I have decided

in my judgment and in accordance with the above provisions, to issue a reprimand to Dr. XXX for the violation of Article 5(1)(b) of the Regulation (EU) 2016/679.

Peace Loizidou Nicolaidou
Commissioner for the Protection of Personal Data
September 3, 2024